

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 24, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE BANK (USA), NA v. SAMANTHA A. CALVO
Case No. CL24-09499**

Motion for Entry of Judgment Under Terms of Stipulated Settlement

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action (such as Defendant here) typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) The court is not satisfied that the mailing address Plaintiff used for service of notice of motion is a good way to reach Defendant. At the previous June 22, 2026 hearing on this motion the court continued the motion to its current date to afford Plaintiff an opportunity to properly serve notice on Defendant; however, the court file does not contain any new proof of service documents.

The court denies this motion without prejudice due to the above-stated issues. Plaintiff is advised to effect service of future motion papers on Defendant in a manner authorized for service of summons and complaint, at least sixteen court days prior to the continued hearing date.

**FITZGERALD v. GENERAL MOTORS, LLC
Case No. cu25-02687**